Reform Prosecutors and the Footprint of the Criminal Justice System

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Elected state and local prosecutors in the United States exercise substantial discretion over charges and dispositions in criminal cases. In recent years, a growing number of reform-minded prosecutors have sought to use this discretion to reduce the footprint of the criminal justice system, including by pursuing alternatives to criminal charges and convictions. However, detractors have expressed concerns about the potential impacts of reformers on crime, and in several jurisdictions these concerns have led to the recall or electoral defeat of incumbent reformers. At the federal level, recently introduced legislation would constrain prosecutorial discretion in cases involving serious index crimes by requiring state and local prosecutors in larger jurisdictions to report their prosecution and diversion rates in these cases.[1] Despite the prominence of the policy debate over reform prosecutors, there is limited systematic evidence about how the footprint of the criminal justice system changes after they are elected. To date, rigorous analysis of the impacts of reformers on case outcomes has been limited to studies of individual prosecutors or states (Ouss and Stevenson, 2023; Agan, Doleac and Harvey, 2023; Mitchell et al., 2022).

In this paper, we ask a simple but policy-relevant question: how does the inauguration of a reform prosecutor impact misdemeanor and felony charging and conviction rates? To answer this question, we use variation in the timing of when these prosecutors took office across jurisdictions combined with administrative data to estimate aggregated effects on misdemeanor and felony charges per capita, convictions conditional on charges, and convictions per capita. Using a staggered difference-in-differences design (Callaway and Sant'Anna, 2021), we find that the inauguration of a reform prosector is associated with a reduction in per capita misdemeanor conviction rates by approximately 258 convictions per 100,000 residents per year (about 17%, $p < 0.05$). These reductions suggestively appear to operate largely through reductions in misdemeanor charging rates (about 12%, $p < 0.1$), with particularly large decreases in drug misdemeanor charging rates (about 25%, $p < 0.1$). We find smaller and only marginally significant reductions in felony convictions per capita (about 8%, $p < 0.1$), with no significant reductions in felony charging rates overall or by offense type. While we cannot disentangle whether these effects operate through changes in criminal behavior, policing, or prosecutorial decisions conditional on arrest, each channel implies a meaningful reduction in criminal justice system involvement following the election of a reform prosecutor.

I. Reform Prosecutors: Background and Data

We obtained a list of reform-minded prosecutors from a nonprofit organization that coordinates a network of these prosecutors. Although the specific reforms implemented by these prosecutors vary across jurisdictions, they generally share a common objective of reducing the footprint of the criminal justice system. We treat the election of a reform prosector as a shift in prosecutorial leadership that may plausibly alter the exercise of prosecutorial discretion and/or the responses of other actors in the criminal justice system.

We combine this list — limiting the sample to local prosecutors who oversee most routine prosecutions in a county or group of counties — with data from the Criminal Justice Administrative

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[1] *Prosecutors Need to Prosecute Act of 2025*, S. 234, 119th Cong. (2025).

Records System's Justice Outcomes Explorer (CJARS JOE), which aggregates administrative data from various jurisdictions, to form county-year rates of misdemeanor and felony charges per 100,000 residents and convictions per felony or misdemeanor charge filed in the years before and after a reform prosecutor's inauguration (Finlay, Mueller-Smith and Team, 2024). We also use these data to construct rates of misdemeanor and felony convictions per 100,000 residents per year. Because availability of these outcomes varies across both counties and offense severity in the CJARS JOE data, we separately limit the misdemeanor and felony analysis samples to county-year observations for which both charging and conviction outcomes are available. This results in 24 treated counties in the misdemeanor sample and 21 in the felony sample.[2] CJARS also uses a hierarchical text-based offense classification tool to predict whether the top charge on each misdemeanor or felony case is most likely to be a drug, property, violent, public order, DUI, or criminal traffic offense (Choi et al., 2023). The CJARS JOE data include county-year counts of predicted drug, property, and violent misdemeanor and felony charges per 100,000 residents, which we use to investigate heterogeneity in the effects of reform prosecutors on charging.

Prior work has examined the effects of individual reform prosecutors on case outcomes. For example, Agan, Doleac and Harvey (2023) find a 15–20% increase in the declination rate for nonviolent misdemeanors after the inauguration of Rachael Rollins in Suffolk County, Massachusetts, and Ouss and Stevenson (2023) show that Philadelphia District Attorney Larry Krasner's office reduced charging rates for low-level shoplifting, prostitution, and marijuana possession cases. Research on progressive chief prosecutors in Florida indicates that their discretionary policies can reduce incarceration and racial disparities in case outcomes (Mitchell et al., 2022). There is also an emerging but still limited empirical evidence base on the effects of reform prosecutors on public safety (Mitchell and Petersen, 2025). Our contribution is complementary: rather than isolating individual reformers or specific states, we ask whether electing a reform-minded prosecutor systematically changes charging and conviction rates across 25 counties in the United States.

II. Empirical Strategy

We use elected reform prosecutors' inauguration dates as shocks to the handling of criminal cases in their jurisdictions. If those prosecutors affect charging and conviction rates, then we would expect to see evidence of a divergence in trends relative to trends in other jurisdictions beginning in the years immediately after the reform prosecutors took office.

We use the procedure developed by Callaway and Sant'Anna (2021) to compare groups of treated counties (those where a reform prosecutor has been inaugurated) with other counties that have not yet or will not be treated (do not have a reform prosecutor) and generate group-time average treatment effect estimates for each set of counties where a reform-minded prosecutor took office in the same year.[3] We then aggregate those estimates to get the population-weighted average treatment effect on the treated (ATT) counties in our sample, excluding problematic comparisons between newly-treated and earlier-treated units. Our estimates are a staggered-timing-adjusted equivalent to the following:

$$y_{c,t} = \beta_0 + \beta_1(Reform_c \times Post_t) + \gamma_t + \delta_c + \varepsilon_{c,t} \tag{1}$$

where c is a county and t is a year. The outcome measure, $y_{c,t}$, is, alternatively, the number of charges filed per 100,000 residents in year t, the share of charges filed in year t resulting in a conviction, or the number of convictions per 100,000 residents resulting from cases filed in year t. γ_t are year fixed effects and δ_c are county fixed effects to absorb baseline variation in outcomes across counties and trends that are common across counties over time. Standard errors are clustered at the county level and computed using a wild cluster bootstrap to account for the small number of treated counties in

[2]For a few eventually-treated counties in each sample, the reform prosecutor's inauguration date is after their last year of appearance in the CJARS JOE data; these counties are included in the comparison group. Reform prosecutors included in the final analysis sample are listed in Table A1 in the supplementary online appendix.

[3]Specifically, we use the *csdid* package in Stata.

the sample. Under standard equal counterfactual trends and no anticipation assumptions, β_1 estimates the average treatment effect of a reform-minded prosecutor on treated counties' case outcomes.

This analysis compares treated counties with reform prosecutors to both not-yet-treated and never-treated counties for which the CJARS JOE data are available. Including never-treated counties maximizes statistical power. However, one concern is that counties that elect reform-minded prosecutors may be inherently different from those that do not, and might have had diverging trends in case outcomes even in the absence of treatment. We show in Table A2 in the supplementary online appendix that eventually-treated counties are, on average, larger than never-treated counties, but are otherwise similar across contextual factors like poverty rates, unemployment rates, and residents' health. We weight our analyses by population to account for differences in county size. Event studies (Figures A1–A4 in the supplementary online appendix) also show that trends in case outcomes are similar across counties with and without reform prosecutors in the years immediately prior to prosecutors' inaugurations.

III. Results

Table 1 presents difference-in-differences estimates of the average treatment on the treated (ATT) effect of a reform prosecutor's inauguration on average county-year case outcomes. Column 1 presents effects on charges per 100,000 residents per year, column 2 reports effects on the share of charged cases resulting in a conviction, and column 3 reports total effects on convictions per 100,000 residents for charges filed in a given year. Panel A presents results for misdemeanor cases and panel B for felony cases. Across all outcomes, point estimates are uniformly negative, indicating reductions in the footprint of the criminal justice system following the inauguration of a reform prosecutor.

Results in column 1 of Panel A indicate that the inauguration of a reform prosecutor suggestively decreases misdemeanor charges per capita by 443 per 100,000 residents per year (about 12%, $p < 0.1$). Effects on the share of misdemeanor charges resulting in a conviction are noisily estimated; the point estimate (column 2) suggests a decrease of about 3.5 percentage points (7%) but is not statistically significant, and the 95% confidence interval cannot rule out increases of about 4 percentage points (8%) or decreases of about 11 percentage points (21%). Finally, the inauguration of a reform prosecutor reduces misdemeanor convictions per capita by 258 per 100,000 residents per year (17%, $p < 0.05$). Felony convictions per capita also suggestively decline (column 3, Panel B), although more modestly, by 52 per 100,000 residents per year (8%, $p < 0.1$). Decreases in felony charging rates and the share of felony charges resulting in a conviction are not statistically significant. These patterns suggest that, on average, electing a reform prosecutor substantially reduces misdemeanor convictions per capita, with decreases suggestively driven by reductions in misdemeanor charging rates, and with suggestive smaller decreases in felony convictions per capita.

Table 2 further characterizes heterogeneity by offense type in per capita misdemeanor (Panel A) and felony (Panel B) charging rates. Reductions in charges per capita are largest for drug misdemeanors (column 2, Panel A), with charges suggestively declining by about 164 per 100,000 residents per year (about 25%, $p < 0.1$) on average. Columns 3 and 4 show smaller and statistically insignificant estimated decreases in property and violent misdemeanor charging rates (4% and 1%, respectively). Panel B presents effects on felony charge rates by offense type, indicating small and statistically insignificant estimated decreases for each category of offense type.

IV. Conclusion

This paper studies how the election of reform-minded prosecutors alters the footprint of the criminal justice system. Using variation in the timing of reform prosecutors' inaugurations across jurisdictions, we show that the election of reform prosecutors leads to economically and statistically significant reductions in misdemeanor convictions per capita. These reductions appear to operate largely through reductions in misdemeanor charging rates, with particularly large decreases in drug misdemeanor charging rates. We find smaller and only marginally significant reductions in felony convictions per capita, with no significant reductions in felony charging rates overall or by offense

Table 1—: Average treatment on the treated effects of reform prosecutors on misdemeanor and felony case outcomes

	(1) Charges per 100,000	(2) Share of Charges Convicted	(3) Convictions per 100,000
Panel A: Misdemeanor Offenses			
ATT	-442.8	-0.0353	-258.4
	(229.7)	(0.0367)	(122.3)
Pre-Treatment Mean	3585.4	0.516	1529.8
Percentage Effect	-12.35	-6.843	-16.89
Treatment-Observed Counties	21	21	21
Eventually-Treated Counties	24	24	24
Never-Treated Counties	995	995	995
Total Counties	1019	1019	1019
Observations	12298	12298	12298
Panel B: Felony Offenses			
ATT	-102.4	-0.0156	-52.25
	(80.54)	(0.0408)	(27.93)
Pre-Treatment Mean	1615.4	0.499	667.4
Percentage Effect	-6.338	-3.123	-7.829
Treatment-Observed Counties	18	18	18
Eventually-Treated Counties	21	21	21
Never-Treated Counties	1004	1004	1004
Total Counties	1025	1025	1025
Observations	12689	12689	12689

Note: The analysis is at the county-year level, and results are estimated using the Callaway and Sant'Anna (2021) estimator and weighted by population. Charges per 100,000 (column 1) refers to charges filed per 100,000 residents per year. Share of charges convicted (column 2) refers to the share of cases charged in a given year that resulted in a conviction. Convictions per 100,000 (column 3) refers to the number of convictions per 100,000 residents resulting from cases initially charged in a given year. Standard errors, clustered at the county level and computed using a wild cluster bootstrap, are reported in parentheses.

type. Although we cannot separately identify changes in crime, policing, or prosecutorial decisions conditional on arrest, the observed reductions in convictions per capita demonstrate a substantial contraction in the footprint of the criminal legal system, concentrated in reductions in misdemeanor drug charges, following the election of a reform prosecutor.

Table 2—: Average treatment on the treated effects of reform prosecutors on charges per 100,000 residents, by offense type

	(1) All	(2) Drug	(3) Property	(4) Violent
Panel A: Misdemeanor Charges per 100,000				
ATT	-442.8	-163.7	-28.64	-7.400
	(225.0)	(92.14)	(43.30)	(16.85)
Pre-Treatment Mean	3712.9	666.9	746.7	509.1
Percentage Effect	-11.92	-24.54	-3.836	-1.454
Treatment-Observed Counties	21	21	21	21
Eventually-Treated Counties	24	24	24	24
Never-Treated Counties	995	995	995	995
Total Counties	1019	1019	1019	1019
Observations	12298	12298	12298	12298
Panel B: Felony Charges per 100,000				
ATT	-102.4	-24.50	-42.72	-6.709
	(88.30)	(44.49)	(41.58)	(16.54)
Pre-Treatment Mean	1615.4	448.8	515.7	320.1
Percentage Effect	-6.338	-5.459	-8.284	-2.096
Treatment-Observed Counties	18	18	18	18
Eventually-Treated Counties	21	21	21	21
Never-Treated Counties	1004	1004	1004	1004
Total Counties	1025	1025	1025	1025
Observations	12689	12689	12689	12689

Note: The analysis is at the county-year level, and results are estimated using the Callaway and Sant'Anna (2021) estimator and weighted by population. Standard errors, clustered at the county level and computed using a wild cluster bootstrap, are reported in parentheses.

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